



U.S. Department
of Transportation

Research and
Special Programs
Administration

DOT-E 11525

SEP 8 1995

400 Seventh Street, S.W.
Washington, D.C. 20590

EXPIRATION DATE: November 30, 1995

(FOR RENEWAL, SEE 49 CFR SECTION 107.105)

1. GRANTEE: Liquid Carbonic Industrial Gases
Oak Brook, Illinois
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the one-time transportation in commerce of a DOT Specification 3A cylinder containing approximately 100 pounds of Chlorine, a Division 2.3 gas. The cylinder has a small leak which is contained by an emergency "A" kit to prevent further leakage. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Part 173.34(d) and (e) and 173.304 (a) (2).
5. BASIS: This exemption is based on the application of Liquid Carbonic Industrial Gases dated August 8, 1995, submitted in accordance with 49 CFR 107.113 and the determination that it is necessary for the protection of life.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Chlorine	2.3	UN1017	Hazard Zone B

7. PACKAGING AND SAFETY CONTROL MEASURES:

- a. PACKAGING - Packaging prescribed is a DOT Specification 3A cylinder which has a leak. The cylinder is equipped with a Chlorine Institute Emergency "A" kit to prevent leakage during transportation.

SEP 8 1995

Continuation DOT E- 11525

Page 2

- b. The cylinder must be braced and blocked to prevent movement during transportation.

8. SPECIAL PROVISIONS:

- a. The cylinder will be transported by Liquid Carbonic Industrial Gases from Canton, Ohio to Kingsbury, Indiana.
- b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard the motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Continuation DOT E- 11525

Page 3

Issued at Washington, D.C.:

SEP 8 1995


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator for Hazardous
Materials Safety, Research and Special Programs Administration,
Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office.
Photo reproductions and legible reductions of this exemption are
permitted. Any alteration of this exemption is prohibited.

Dist: FHWA